

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT COURT OF DELAWARE**

QORVO, INC.

Plaintiff,

v.

AKOUSTIS TECHNOLOGIES, INC. and
AKOUSTIS, INC.

Defendants.

C.A. No. 21-1417 (JPM)

JURY TRIAL DEMANDED

**THE AKOUSTIS DEFENDANTS' REQUEST FOR JUDICIAL NOTICE
OF CERTAIN PORTIONS OF THE DECLARATION OF DR. ROBERT AIGNER**

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Pursuant to Fed. R. Evid. 201, defendants Akoustis Technologies, Inc. and Akoustis Inc. (collectively, “Akoustis”) respectfully request that the Court take judicial notice that certain pages of the Exhibits to the Declaration of Robert Aigner, Ph.D. in Support of TriQuint’s Motion to Seal (“Aigner Declaration”), attached as Exhibit 1, were filed and publicly available as of September 29, 2011 in *TriQuint Semiconductor, Inc. v. Avago Tech. Ltd.*, Case No. 2:09-CV-01531 (D. Ariz.) (the “*Avago Case*”). Dr. Aigner testified in the present case on May 7, 2024; the Aigner Declaration was marked for identification as Trial Exhibit No. 18. For purposes of using certain portions of the Aigner Declaration as evidence in the present trial, Akoustis respectfully requests that the Court take judicial notice of the public availability of *excerpts* from the exhibits that Dr. Aigner attached to his Declaration filed in the *Avago Case*. True and correct copies of those excerpts are attached as **Exhibit 1**.

A Court may take judicial notice of adjudicative facts that are not subject to reasonable dispute where (1) they are generally known within the Court’s territorial jurisdiction; or (2) they can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned. *See* Fed. R. Evid. 201(a)-(b).

The Aigner Declaration is a publicly available document that bears an ECF stamp reflecting that counsel for Triquint (now Qorvo) filed the material in the District of Arizona on September 29, 2011. The information within the excerpts meet Rule 201’s requirement that the information be accurately and readily determined from a source (Qorvo) whose accuracy cannot reasonably be questioned.

The excerpts in Exhibit 1 relate to bulk acoustic wave (BAW) filters and associated designs and manufacturing procedures. The demonstrative that Akoustis attaches as **Exhibit 2** correlates

excerpted information filed with the Aigner Declaration and certain trade secrets that Qorvo asserts in this case.

The excerpted information in Exhibit 1 is more probative than prejudicial. Exhibit 2 shows how the excerpts correlate to the excerpted trade secrets. If the jury understands and finds that in 2011, Qorvo placed in the public record documents containing trade secrets that it is asserting here, the asserted trade secrets do not qualify as such and must fall away from the case. By detaching the exhibits from the cover declaration – relying only on the ECF filing header that we expect the jury will not be able to decipher – Qorvo’s concern about references to other litigation are fully assuaged.

Akoustis respectfully requests that the Court grant the present Request for Judicial Notice.

Dated: May 10, 2024

Respectfully submitted,

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